

Suman Lata Sengar v. State of U.P. — bill dispute relegated to clause 6.5

High Court of Judicature at Allahabad · Division Bench · 10 January 2019 · WRIT - C No. - 704 of 2019 · **Writ dismissed; relegated to Executive Engineer under clause 6.5.**

HEADNOTE

A writ seeking quashing of a demand notice of Rs. 76,137 towards electricity arrears was dismissed. A consumer who disputes an electricity bill and seeks its correction has a statutory remedy of approaching the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Suman Lata Sengar petitioned the Allahabad High Court to quash a demand notice dated 24 November 2018 requiring payment of Rs. 76,137 as arrears of electricity. She disputed the bill and asked for its correction. Respondent no. 4 is the Executive Engineer, Electricity Distribution Division, Sirsaganj, District Firozabad. Counsel for the petitioner, for the licensee, and the Standing Counsel for the State were heard on 10 January 2019.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-alternative-remedy

HOLDING

Where the petitioner disputes an electricity bill and seeks its correction, the remedy is to approach the Executive Engineer under clause 6.5 of the Electricity Supply Code, 2005; a writ petition to quash the demand notice is dismissed on that alternative remedy. ¶ 1

PRINCIPLE TAGS

clause-6.5-statutory-remedy The Division Bench treated clause 6.5 as the statutory forum for a consumer disputing a bill and seeking correction, and dismissed the writ on that remedy. ¶ 1

billing-objection-to-executive-engineer-under-6.5 The petitioner was directed to the Executive Engineer, Electricity Distribution Division, Sirsaganj, Firozabad, under clause 6.5 rather than to writ relief against the demand notice. ¶ 1

billing-dispute-question-of-fact-executive-engineer-clause-6.5 The challenge was to the correctness of an arrears demand of Rs. 76,137; that billing dispute was left to the Executive Engineer under clause 6.5. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND OF RS. 76,137 AND THE ELECTRICITY BILL

Left to the Executive Engineer under clause 6.5. ¶ 1